



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 21, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 10043
(ELEVENTH REVISION)

EXPIRATION DATE: 2027-10-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Texas Instruments Incorporated
Dallas, TX
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of the residue of certain hazardous wastes classed as Class or Division 3, 5.1, 6.1, 8, or 9 in inner packagings having a maximum capacity of five gallons, in non-DOT specification polyethylene bins of 30 cubic-foot capacity or UN31H1 Intermediate Bulk Containers (IBCs). This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.12(b)(2) (ii)(A) in that a non-DOT specification bin or a UN31H1 IBC is not authorized as the outer package, except as specified herein.
5. BASIS: This special permit is based on the application of Texas Instruments Incorporated dated October 30, 2023, submitted in accordance with § 107.109.

Tracking Number: 2023105362

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Waste hazardous materials classed as Class or Division 3, 5.1, 6.1, 8, or 9, which are authorized to be shipped in lab packs in accordance with § 173.12(b).	3, 5.1, 6.1, 8, or 9	As appropriate	I, II, or III, as appropriate

7. SAFETY CONTROL MEASURES: Prescribed packagings are non-DOT specification polyethylene bins (model #BC 484042) closed with form-fitting polyethylene lids (Model CO4840F) and by at least two bands in two directions having a nominal capacity of 30 cubic feet manufactured by Menasha Corporation used as reusable outside packagings or UN31H1 IBCs. The polyethylene bins or UN31H1 IBCs must be used for transporting plastic, plastic-coated, and metal containers of five gallons and smaller capacity to the Texas Instruments Incorporated container recycling facility. Polyethylene bins must be capable of satisfactorily withstanding the performance tests specified in § 173.12(b) of the October 1, 1990, version of 49 CFR Parts 171 to 180, except the minimum amplitude for vibration must be 0.880 inches.

8. SPECIAL PROVISIONS:

- a. Under the terms of this special permit, the grantee may only offer hazardous materials (i.e., the grantee is not authorized as a carrier).
- b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.
- c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- d. Each polyethylene bin or IBC must be marked "DOT-SP 10043" on both sides in letters and numbers at least two inches high on a contrasting background.
- e. Each polyethylene bin or IBC must only contain empty packagings with residues meeting the same DOT hazard class.

- f. The polyethylene bins must have been manufactured prior to March 31, 1998.
- 9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
- 10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
- 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 ET seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Jephthah Nti